[redacted]ON
06/18/2007 AT 09:18:47

BOOK:012606 PAGE:00470 - 00473

When Recorded return to

[redacted]

4814728 1702356505
Loan Number [redacted]

[redacted]

Mortgagor (or Trustor)

4604 Zaldivar Way
Raleigh, NC 27612
Property Address

Agreement for Modification o[redacted]

The Trustor or Mortgagor identified above (hereinafter referred to as the "Mortgagor") does hereby apply for a Modification of the payment provisions of the above ("Modification" or "Extension") numbered account covering an indebtedness owing from the Mortgagor t[redacted] (hereinafter referred to as the "Mortgagee"), evidenced by a note (or bond) and secured by a real property mortgage (or trust deed) (said note or bond and real property mortgage or trust deed are hereinafter referred to as the "Mortgage") and the Mortgagor represents and agrees as follows:

(1) Mortgagor is now the owner and holder of the real property encumbered by said Mortgage, recorded in the public records in the County of Wake, State of NC, in book 012239, page 00198, or document or file number _____.

(2) Under the terms of said Mortgage, there remains unpaid as of the first day of the month in which this Agreement is made, the sum of $ 361,876.30 for principal, $ N/A for interest thereon, $ N/A, for advances made by the Mortgagee there under, and $ NA for interest on such advances, aggregating a total sum of $ 361,876.30 for which amount the Mortgagor is indebted to the Mortgagee under said Mortgage, which is a valid lien, to which Mortgagor has no defenses, off-sets or counterclaims.

(3) Mortgagor hereby deposits with the Mortgagee the sum of $ 57,000.00, which is to be applied upon the present balance due on the principal of said Mortgage, (including advances, if any), and the sum of $ N/A, which is to be applied upon the delinquent interest due upon said principal (and advances, if any); application of said deposited amounts is to be made as of the effective date of this modification or extension, which if not executed by Mortgagee, shall be returned to Mortgagor.

(4) Mortgagor agrees the terms of said Mortgage are modified or extended relative to the payment of said indebtedness by providing for payment of the balance of the principal, including any unpaid interest due thereon, (after the deposits aforementioned have been applied thereto), as follows:

Said total balance of $304,876.30 is to be paid, with interest at the rate of 6.250% per annum, on the unpaid balance, in equal month installments of $ 1878.96 (exclusive of sums required to be deposited for the payment of taxes, insurance, etc.), the first of said installments shall become due and payable on the day of January 1, 2007, and the remaining installments, successively, on the first day of each and every month thereafter, until said mortgage indebtedness is fully paid, except that if not sooner paid, the final payment of principal and interest shall be due and payable on the day of November 1, 2036, which is the present or extended maturity date.

(5) Mortgagor agrees to make the payments as specified in paragraph (4) hereof and understands and agrees that:

(a) All the rights and remedies, stipulations, and conditions contained in said Mortgage relating to default in the making of payments under the Mortgage shall also apply to default in the making of said modified payments here under.

(b) All covenants, agreements, stipulations and conditions in said Mortgage shall be and remain in full force and effect, except as herein modified, and none of the Mortgagor's obligations or liabilities under said Mortgage shall be diminished or released by an provisions hereof; nor shall this Agreement in any way impair, diminish, or affect any of the Mortgagee's rights under or remedies on the Mortgage, whether such rights or remedies arise there under or by operation of law. In addition, all rights of recourse to which the Mortgagee is presently entitled against any property or any other persons in any way obligated for or liable on the Mortgage, are expressly reserved by the Mortgagee.

(c) All costs and expenses incurred by Mortgagee in connection with this Agreement, including recording fees, title examinations, and attorney's fees, shall be paid by Mortgagor and shall be secured by said Mortgage.

(d) Mortgagor agrees to make and execute such other documents or papers as may be necessary or required to effectuate the terms and conditions of this Agreement which, if approved and accepted by the Mortgagee, shall bind and inure to the heirs, executors, administrators, and assigns of the Mortgagor.

6) For the purpose of inducing and influencing the Mortgagee to execute this Agreement, the undersigned represents of his or her own knowledge that the names of all owners or other persons having an interest in the mortgaged property are as follows:

[redacted]

80112

[redacted] Colorado
Arapahoe

[redacted] Notary Public for Arapahoe County, Colorado, certify t[redacted] December, 2006 and acknowledged that she is V[redacted] a corporation, and that she, as Vice-President being authorized to do so, executed the forgoing[redacted] corporation.

[redacted] 2007

(PLEASE SIGN AND HAVE NOTARIZED USING BLACK INK PEN)

[redacted]

*Acknowledgement

State of: North Carolina

County of: War[redacted]

On 12/7/06, befor[redacted] (A Notary Public)
Date

Personally appeared [redacted] and [redacted]
Name(s) of Signer(s)

[redacted]

Place Notary Public Seal above

☐ Personally known to me
☑ Proved to me on the basis of satisfactory evidence

To be the person(s) whose name(s) is/are Subscribed to the within instrument and acknowledged to me that he/she/they executed The same in his/her/their authorized Capacity (ies), and that by his/her/their signature(s) on the instrument the person(s), or The entity upon behalf of which the person(s) Acted, executed the instrument.

[redacted] seal

[redacted] ublic

My Commission Expires: 4/30/2011



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Yellow probate sheet is a vital part of your recorded document.
Please retain with original document and submit for rerecording.

WAKE COUNTY NORTH CAROLINA

[redacted] **of Deeds**

This Customer Group
_____ # of Time Stamps Needed

This Document
_____4_____ New Time Stamp
_____4_____ # of Pages

22.004-1/20/06